

Where the declarant/representative is not present during the examination, this absence is to be noted in the record of examination (Article 243(1) IA).

7.1.7 Time limits

Where goods selected for examination are not produced within a reasonable period, or where the declarant does not respond to/declines a request to be present or represented, or where assistance called for is not provided, a time limit is to be imposed for compliance with requirements and the declarant advised in writing. The advice is to include a warning that, if the time limit is not met, arrangements will be made with the carrier or storage operator for the examination of the goods at the declarant's risk and expense, and if necessary, the services of an expert or other designated person being called upon. Time limits, which should be determined in the light of the circumstances of individual cases, are not normally to exceed two weeks (Article 239(2) IA).

7.1.8 Customs treatment of containerised traffic

Examination of goods in containers

Where a partial examination of the goods is insufficient to ensure customs requirements have been met, a full examination is to be undertaken. All cargo should be removed, and an official presence is to be maintained throughout the stripping operation. The cargo is to be examined thoroughly using any available resources. It is important to check the out-turn total of packages against the declaration. Packages in excess of the declared quantity must be treated as an irregularity and the relevant import documents amended to reflect the increased quantity.

Labels on boxes when goods opened or withdrawn

When an original bottle or container is opened for account or sampled, it is to be labelled with label C&E No 127 or 127a, as the case may require and the label is, as far as is practicable, to be affixed so as not to obscure any trade labels. If the bottle or internal container is not returned to the imported package before being cleared by Revenue, label C&E No 126, signed and dated by the officer, is to be placed in the vacant space in the package. The weight of any quantity of dry goods in packets etc., retained as a sample is to be recorded on the label. These directions are to be applied to bottles, packets, cartons and all descriptions of imported package goods, which may be opened or withdrawn for reassessment, test or any other official purpose.

Partial examination results to be applied to all declared goods

Where only part of a consignment has been examined, the results are to be applied to the entire consignment. The declarant is entitled to request a further examination if s/he considers that the results of the partial examination are not valid as regards the remainder of the goods within the consignment (Article 190 UCC).